IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application in Revision in terms of Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka read with Section 364 and 365 of the Code of Criminal Procedure Act No. 15 of 1979 and the High Court of the Provinces (Special Provisions) Act No. 19 of 1990.

Court of Appeal Application No: CA (PHC) APN 0140/24

The Director General
Commission to Investigate Allegations of Bribery or Corruption,
No.36, Malalasekera Mawatha,
Colombo-07.

High Court of Colombo No. HCB/192/22

Complainant

Vs.

Kaluwabadu Vidanage Pramila Madurangani
No.19, Jambugahawatta, Pelawatte,
Devinuwara

Accused

AND BETWEEN

The Director General

Commission to Investigate Allegations of Bribery or Corruption,

No.36, Malalasekera Mawatha,

Colombo-07.

Complainant-Petitioner

Vs.

Kaluwabadu Vidanage Pramila Madurangani

No.19, Jambugahawatta, Pelawatte,

Devinuwara

Accused -Respondent

BEFORE : **P. Kumararatnam, J.**

R. P. Hettiarachchi, J.

COUNSEL : **Gayan Maduwage for the Petitioner.**

Anil Silva with Isuru Jayawardena for the Respondent.

ARGUED ON : **10/12/2025.**

DECIDED ON : **20/02/2025.**

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JUDGMENT

P. Kumararatnam, J.

The Accused-Respondent (Hereinafter referred to as the Respondent) was indicted in the High Court of Colombo under the case bearing the number No. HCB/192/2022 for Solicitation of a sum of Rs. 150,000/- and Acceptance of Rs. 150,000/- as gratification from PW1 in order to admit PW1's son to grade 1 of the President's College of Embilipitiya. The Respondent was charged for four counts under Sections 19 (b) and 19 (c) of the Bribery Act.

As per P2, the Petitioner had given notice under Section 7 of the Evidence (Special Provisions) Act No. 14 of 1995 had given notice to the Respondent stating that the prosecution is intending to lead the CCTV recordings as evidence. This had happened on the very first day when the case was called in the High Court of Colombo on 25.11.2022.

When this matter was called for pre-trial conference on 14.02.2023, the prosecution had tendered all the documents pertaining to the indictment including CDs, as per the production list in the indictment.

As per P3, the learned defence Counsel had filed a motion dated 17.02.2023 seeking the access for the devices as per Section 07 of the Evidence (Special Provisions) Act No. 14 of 1995. Before the commencement of the trial, prosecution had filed two motions dated 27.07.2023 and 24.10.2023 to be sent to two service providers in order

to ensure the access to the devices as per the Section 7 of the Evidence (Special Provisions) Act No. 14 of 1995. The learned High Court Judge by his order dated 26.10.2023, dismissed the said application by the prosecution. The said order was marked as P7 to this application.

Even though, the learned High Court Judge rejected the application of the prosecution, the prosecution was able to give access to the DVR equipment at the President's College, Embilipitiya to the defence on 25.10.2023.

At the trial, when the prosecution sought permission from court to play the CCTV recording, the defence took up the objection that the prosecution has not complied with the Evidence (Special Provisions) Act No. 14 of 1995. The learned High Court Judge upholding the objection raised by the Respondent, refused the application made by the prosecution to play the CCTV recording. The said order is marked and produced as P10 in this revision application.

The Petitioner states that the refusal order of the learned High Court Judge is a manifest error and therefore, he sought the intervention of this court in terms of Article 138 of the Constitution.

<u>The Petitioner submits the existence of the following exceptional grounds in favour of him:</u>

1. The order dated 26.07.2024 is contrary to law.
2. The learned High Court Judge has failed to comply with the Evidence (Special Provisions) Act No.14 of 1995.
3. The said order is replete with illegality as it considered the reliability of CCTV recordings, which ought to be considered at the end of the trial, instead of considering the objections raised by the defence regarding the admissibility of the same.
4. The said order is manifestly erroneous as it prematurely judged the reliability of such CCTV recordings, a determination which ought

to be reached at the end of the trial and/or after leading the relevant evidence.

5. The said order is erroneous as it has counted the evidence instead of weighing the same as it had made it a requirement for the prosecution to tender additional evidence in the form of an expert opinion on CCTV recording and its safe custody.
6. The said order suffers from impermissible irrationality as it has the effect of rejecting contemporaneous recordings in evidence, a genre of best evidence that can be produced in a court of law in administering (Criminal) Justice.
7. The said order is irreconcilable as the learned High Court Judge had not allowed the best evidence of this matter to be admitted.

The main objection raised by the Respondent was that the prosecution has not complied with the pre-requisites before filing the CCTV footages and has not submitted a report from Moratuwa University or any other institution to show that the said CCTV footages are not altered or tampered in any manner under the Evidence (Special Provisions) Act No.14 of 1995.

Section 2 of the Evidence (Special Provisions) Act No. 15 of 1995 states:

> Notwithstanding anything contained to the contrary in the Evidence Ordinance or any other written law the provisions of this act shall be applicable in respect of any matter provided here in.

In this case, the prosecution had immediately after the raid, on 03.12.2020 extracted the relevant CCTV footages from President's College of Embilipitiya. After the extraction, the prosecution has given proper notice as per Section 7 of the Evidence (Special Provisions) Act No. 14 of 1995.

Section 7(1) of the Evidence (Special Provisions) Act No.15 of 1995 states:

The following provisions shall apply where any party to any proceedings proceeds to tender any evidence under Section 4 or Section 5, in such proceedings-

(a) The party proposing to tender such evidence shall, not later than 45 days before the date fixed for inquiry or trial file, or cause to be filed in court after notice to the opposing party, a list of such evidence as is proposed to be tendered by that party, together with a copy of such evidence or such particulars thereof as is sufficient to enable the party to understand the nature of the evidence.

As per the above section of the Evidence (Special Provisions) Act No.14 of 1995, the Petitioner had tendered the notice on 25.11.2022 in court with a copy of the CCTV footage to the defence. In response, the Respondent had requested the access by filing a motion on 17.02.2023. Although, the Petitioner had filed two motions dated 27.07.2023 and 24.10.2023 to give access to the Respondent, it was rejected by the learned High Court Judge on 26.10.2023. Although the applications were rejected, in complying with Section 7(1) (c) of the Act, the Petitioner was able to give access to the Respondent to the DVR of the school.

Section 4 of the Evidence (Special Provisions) Act No. 14 of 1995 states;

(1) In any proceeding where direct oral evidence of a fact would be admissible, any contemporaneous recording reproduction thereof, tending to establish that fact shall admissible as evidence of that fact. If it is shown that-

(a) the recording or reproduction was made by the use of electronic or mechanical means;

(b) subject to subsection (3) of this section, the recording or reproduction is capable of being played, replayed, displayed or

reproduced in such a manner so as to make it capable of being perceived by the senses;

(c) at all times material to the making of the recording or reproduction the machine or device used in making the recording or reproduction, as the case may be, was operating properly, or if it was not, any respect in which it was not operating properly or out of operation, was not of such a nature as to affect the accuracy of the recording or reproduction;

(d) the recording or reproduction was not altered or tampered with in any manner whatsoever during or after the making of such recording or reproduction, or that it was kept in safe custody at all material times, during or after the making of such recording or reproduction and that sufficient precautions were taken to prevent the possibility of such recording or reproduction being altered or tampered with, during the period in which it was in such custody.

(2) If the conditions set out in subsection (1) are satisfied, the recording or reproduction shall be admissible in evidence or the fact recorded or reproduced, whether or not such fact was witnessed by any person.

(3) Where any recording or reproduction referred to in subsection (1)-

(a) cannot be played, replayed, displayed or reproduced in such a manner so as to make it capable of being perceived by the senses; or

(b) is capable of being so perceived but is unintelligible to a person not conversant in a specific science; or

(c) is of such nature that it is not convenient to perceive and receive in evidence, in its original form,

the court may admit in evidence a transcript, translation, conversion or transformation, as the case may be such recording or reproduction which is intelligible and is capable of being perceived by the senses.

(4) A recording or reproduction shall be taken to have been made by the use of electronic or mechanical means, whether it was made by a single machine or device or by several machines or devices or by different machines or devices, in any combination, with or without the aid of any appropriate equipment or human intervention.

(5) Where evidence is admissible under the preceding provisions of this section, a duplicate of such evidence shall be admissible in the same manner and to the same extent as the source from which the duplicate is made.

Further, the Petitioner in compliance with Section 4 of the Evidence (Special Provisions) Act No. 14 of 1995, has listed necessary witnesses in the indictment. Although, the Respondent took up the position that the DVR in question was not sent for expert's analysis, on perusal of Section 4(1) of the Act, there is no such requirement laid down in the Act.

In **Indikatiya Hewage Kusumadasa Mahanama and Another v. The Commission to Investigate Allegations of Bribery or Corruption and Another** SC TAB 1A and 1B/2000, decided on 11.01.2023, the Supreme Court held that:

"In these circumstances it is clear that, the Supreme Court when deciding Anoma S.Polwatte v. Director General Commission to Investigate Allegation of Bribery and Corruption and others SC Writ 1/2011 SC Minute dated 26.07.2018 had never intended to impose an additional requirement to submit a written directive when filing charges

> *before Court, and therefore this Court is not inclined to impose an additional requirement other than the provisions already identified.…"*

Considering the above Judgement of the Supreme Court, an additional burden cannot be imposed when the Act has not mentioned such a requirement.

According to Section 9 of the Act, the Court may presume the accuracy of any recording, reproduction or statement produced by, or by the use of, a machine, device or computer which is in common use.

<u>For clarity, Section 9 is re-produced below:</u>

> The court may presume the accuracy of any recording, reproduction or statement produced by, or by the use of, a machine, device or computer which is in common use and where the court draws such presumption with respect to any recording, reproduction or statement, and in the absence of any evidence to the contrary, it shall not be necessary for any party proposing to tender such recording, reproduction or statement in evidence to show that the conditions set out in the preceding provisions of this Act, relating to the admissibility of such recording, reproduction or statement have been satisfied.

On perusal of the indictment, the prosecution has listed all necessary witnesses to lead evidence with regard to the proper operation of the DVR, obtaining the copy of the same and its proper custody. Although, the opportunity is available under the Evidence (Special Provisions) Act No. 15 of 1995 for the defence to challenge the evidence of the prosecution, in my opinion, this only could be done during the continuation of the trial, enabling the Trial Judge to consider the matter at the end of the case.

In this case, as per P8, the defence admitted that the prosecution has given access to the DVR equipment at the President's College, Embilipitiya. The learned Counsel for the Petitioner submitted that the Counsel for the Respondent neither on the date of inspection date nor on the pre-trial conference dated 05.12.2023 sought further access to the devices. The Respondent has raised a preliminary objection on 26.07.2024, which was upheld by the learned High Court Judge and which refused the prosecution to play the copy obtained from the CCTV footages in question. I think this is a premature application by the defence and the learned High Court Judge should have considered all these matters at the end of the trial.

In the case of **Vanderbona v Perera** [1985] 2 SLR 62, the Court held that:

> *"The best evidence rule is now whittled down and though the non-production of the best evidence may be a matter for comment or may affect the weight of the evidence that has been produced, it is not true that the best evidence must be given to prove a fact".*

In **CA/CPA/0064/2023** his Lordship Abeykoon, J. held that:

> *"In our law, further whittling down of this principle has been statutorily recognized by the Evidence (Special Provisions) Act No. 14 of 1995. Under the provisions relating to contemporaneous recordings under section 4, in any proceeding where direct oral evidence of a fact would be admissible, any contemporaneous recordings or reproductions thereof, tending to establish that fact, shall be admissible as evidence of that fact under certain conditions set out in the section itself.*
>
> *Even the admissibility of a duplicate of such evidence also has been recognized in terms of section 4 (5) of the Act.*

It is my considered view that if the prosecution has allowed access to the items of evidence intended to be marked as P-25 and 27 in terms of section 7 of the Evidence (Special Provisions) Act No. 14 of 1995, a trial Court has no basis to reject the leading of such evidence on the basis that the original instrument that recorded the conversations is not available, and that there is no scientific evidence to identify the voices contained therein.

I am of the view that those are matters of comment, and matters if relevant, that can be considered in determining the value of such evidence in the overall context of a case".

Further, in the case of **Abeyagunawardane v. Samoon and Others** (2007) 1 SLR 276 it was held:

"*From a perusal of the evidence, the prevalent Law namely the Evidence (Special Provisions) Act No. 14 of 1995, and related matters it is my view that;*

(i) The evidence led by the both the prosecution and defence prove that there was no contemporaneous recording of the raid.

(ii) The evidence clearly establishes that whatever recording that was made (filming of the Productions at the Police Narcotics Bureau) was not kept in safe custody at all material times.

(iii) Insufficient precautions were taken to prevent the possibility of such recordings being altered or tampered with. (Counsel for the accused have admitted that they were in possession of such recording or part thereof).

Hence it is manifestly well established that the Provisions of section 4(1)(a) -(d) of the Evidence (Special Provisions) Act No. 14 of 1995 have not been compiled with, and thus it is my view that the marking of the video cassette is not admissible under section 4(2) of the aforesaid Act."

Considering the circumstances of this case and the judgement referred above, I conclude that the rejection of the request made by the prosecution to play the CCTV footage is incorrect and without any basis. Therefore, I set aside the order dated 26.07.2024 and direct the learned High Court Judge to allow the Petitioner to play the CCTV footages and to commence the trial by recalling the prosecution witness No. 01 for his testimony on CCTV footages and continue the trial.

The revision application is allowed.

The Registrar of this Court is directed to send this Judgment to the High Court of Colombo for necessary compliance.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL